

# STATUTORY CONSTRUCTION (STATCON)

*A Comprehensive Step-by-Step Methodology and Practical Guide in Philippine Jurisprudence*

## 1. NATURE, PURPOSE, AND DEFINITION

In Philippine law, statutory construction is the art or process of discovering and expounding the meaning and intention of the authors of the law, where that intention is rendered doubtful either by the ambiguity of its language or by the fact that the given case is not explicitly provided for in the law (*Caltex v. Palomar*, 18 SCRA 247).

The primary object of all interpretation and construction is to ascertain and give effect to the intention of the legislature (*Ratio Legis*). Legislative intent is the vital part, the essence of the law (*animus legis*).

### CANONICAL BENCHMARK

*"The first and fundamental duty of courts is to apply the law. Construction and interpretation come only after it has been demonstrated that application is impossible or inadequate without them."*

— *Bolos v. Bolos*, G.R. No. 186400

## 2. THE 6-STEP METHODOLOGY FOR STATUTORY CONSTRUCTION

### STEP 0: The Threshold Rule — The Plain Meaning Rule (*Verba Legis*)

Before embarking on any interpretation, the court or analyst must evaluate whether the statutory text is clear and unambiguous.

- **Plain Meaning Rule:** *Verba legis non est recedendum* (From the words of a statute there should be no departure). If the statute is clear, plain, and free from ambiguity, it must be given its literal meaning and applied without interpretation.
- **Index of Intention:** *Index animi sermo est* (Speech is the index of intention). The words chosen by the Legislature are presumed to express its real intent.
- **Judicial Restraint:** *Dura lex sed lex* (The law may be harsh, but it is the law). Hardship or inconvenience does not justify judicial modification of an unambiguous statutory mandate.
- **When Construction is Triggered:** When the statutory wording is ambiguous, obscure, or susceptible of multiple constructions; or when a literal application would result in absurdity, injustice, or defeat the manifest purpose of the act (*Cessante ratione legis, cessat ipsa lex*).

### STEP 1: Examine the Text Within Its Four Corners (*Intrinsic Aids*)

When ambiguity exists, the interpreter must first exhaust all intrinsic aids found directly within the text of the statute itself before looking outward.

- **1. Statute Read as a Whole:** A statute must be construed as a harmonious whole, not in disjointed fragments. Every part must be given effect and reconciled with other provisions (*Ut res magis valeat quam pereat* — that the thing may rather have effect than perish).
- **2. Ordinary vs. Technical Meaning:** Words are presumed used in their natural, ordinary, and commonly understood meaning, unless defined by statute or having a distinct legal/technical meaning.
- **3. Title of the Statute:** The title expresses the subject matter and helps clarify ambiguous phrases, though it cannot control clear enacting language.
- **4. Preamble & Whereas Clauses:** The 'Whereas' clauses recite the reasons, mischief, and necessity for the enactment. It serves as a key to unlock the minds of lawmakers.
- **5. Legislative Definition Clauses:** Express definitions enacted by the Legislature control over dictionary meanings for that specific statute.
- **6. Punctuation & Qualifying Clauses:** Punctuation marks (commas, semicolons) are aids of low degree, but qualifying words generally apply only to the words immediately preceding them unless separated by a comma.

## STEP 2: Apply the Canonical Latin Maxims and Linguistic Canons

Where textual clauses are ambiguous, the following classical canons of construction provide settled rules of linguistic and logical deduction:

| Latin Canon / Maxim                          | Literal & Legal Meaning                                               | Application in Philippine Jurisprudence                                                                                                                                                           |
|----------------------------------------------|-----------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <i>Noscitur a Sociis</i>                     | Words are known by their companions.                                  | Where a word is ambiguous, its meaning is ascertained by reference to the words associated with or accompanying it.                                                                               |
| <i>Ejusdem Generis</i>                       | Of the same kind, class, or nature.                                   | Where general words follow an enumeration of specific persons/things, the general words are restricted to things of the same kind as those specifically enumerated ( <i>People v. Purisima</i> ). |
| <i>Expressio Unius Est Exclusio Alterius</i> | The express mention of one thing implies the exclusion of all others. | If a statute expressly enumerates specific qualifications, persons, or remedies, all unmentioned ones are deemed excluded ( <i>Malinias v. COMELEC</i> ).                                         |
| <i>Casus Omissus Pro Omisso Habendus Est</i> | A case omitted is to be held as intentionally omitted.                | A person, object, or circumstance omitted from an enactment cannot be supplied by the courts under the guise of interpretation.                                                                   |
| <i>Reddendo Singula Singulis</i>             | Referring each to each.                                               | Distributing antecedent qualifying words respectively to their appropriate relative subjects (each word applied to its corresponding subject).                                                    |
| <i>Generalia Specialibus Non Derogant</i>    | General words do not derogate from special provisions.                | A special statute governing a specific subject prevails over a general law, even if the general law was enacted later ( <i>Valera v. Tuason</i> ).                                                |

### STEP 3: Consult Context Outside the Statute (Extrinsic Aids)

If the meaning remains obscure after applying intrinsic aids and canons, resort to extrinsic aids—sources outside the text reflecting history and contemporaneous circumstances:

- **1. Explanatory Notes:** Statements of the bill's author detailing the problems intended to be solved.
- **2. Legislative Committee Reports:** Reports submitted by Senate and House committees explaining revisions and amendments.
- **3. Congressional Debates & Journals:** Transcripts of floor debates, sponsor speeches, and Bicameral Conference Committee discussions (*Chavez v. JBC*).
- **4. Contemporaneous Administrative Construction:** Executive issuances (IRRs), Secretary of Justice Opinions, and administrative practices. These are accorded high persuasive weight by courts, though they cannot alter statutory terms.
- **5. Prior Judicial Precedents:** Decisions of the Supreme Court applying or construing the statute form part of the law of the land (Article 8, Civil Code; *Stare Decisis et non quieta movere*).
- **6. History of the Times:** The historical context, state of society, and specific evil or mischief the statute was enacted to eradicate (*The Mischief Rule / Heydon's Case*).

### STEP 4: Determine the Applicable Rule of Construction (Strict vs. Liberal)

Philippine law prescribes distinct standards of strictness or liberality depending on the nature and policy objective of the statute:

| Category of Statute        | Construction Standard | Governing Legal Doctrine & Rationale                                                                                                                                        |
|----------------------------|-----------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Penal Statutes             | STRICT                | Construed strictly against the State and liberally in favor of the accused ( <i>In dubio pro reo</i> ). No person can be brought within a penal law unless clearly covered. |
| Tax-Imposing Statutes      | STRICT                | Taxes are burdens; tax laws are construed strictly against the Government and liberally in favor of the taxpayer ( <i>CIR v. CA</i> ).                                      |
| Tax Exemption Statutes     | STRICT                | Exemptions are in derogation of sovereignty; construed <i>strictissimi juris</i> against the claimant and in favor of the taxing authority.                                 |
| Labor & Social Legislation | LIBERAL               | Construed liberally in favor of the working class and social justice (Art. 4, Labor Code; Art. 1702, Civil Code; <i>Villavert v. ECC</i> ).                                 |
| Remedial / Procedural Laws | LIBERAL               | Construed liberally to promote just, speedy, and inexpensive disposition of actions, avoiding technical dismissals (Rule 1, Sec. 6, Rules of Court).                        |
| Election Laws              | LIBERAL               | Construed liberally to give maximum effect to the sovereign will of the electorate and prevent disenfranchisement.                                                          |

## STEP 5: Test and Harmonize with Higher and Parallel Laws

Statutes do not exist in a vacuum; they must be harmonized within the broader hierarchy of Philippine law:

- **1. Constitutional Supremacy:** The Constitution is the supreme law. Every statute is presumed constitutional. If a statute is susceptible of two interpretations—one valid and the other unconstitutional—the court must adopt the interpretation sustaining its constitutionality (*Pimentel v. Legal Education Board*, G.R. No. 230642).
- **2. Harmonization of Parallel Laws:** Statutes relating to the same subject matter or having the same purpose must be construed together as parts of a unified legal system (*In Pari Materia*).
- **3. Presumption Against Implied Repeal:** Repeal by implication is disfavored in Philippine law. There must be an irreconcilable inconsistency and repugnancy between an earlier and later statute before an implied repeal is recognized (*Mecano v. COA*).
- **4. Presumption of Prospectivity:** Statutes must be given prospective operation, unless retroactive effect is expressly provided, or the law is procedural, curative, or penal favorable to the accused (Art. 4, Civil Code).

## STEP 6: Formulate the Legal Conclusion & Synthesis

Synthesize your statutory analysis into an authoritative legal position using the following structural template:

- **1. Define the Ambiguity:** Identify the specific ambiguous statutory clause, conflicting phrase, or challenged administrative rule.
- **2. Establish Statutory Baseline:** Quote the exact statutory provision and state why literal application is insufficient or contested.
- **3. Invoke Canons & Aids:** Apply the governing Latin maxim, legislative history finding, or statutory construction standard.
- **4. Align with Constitution & Policy:** Demonstrate that the construction upholds constitutional boundaries and prevents absurdity.
- **5. State Holding / Ruling:** Articulate the precise legal consequence, obligation, or relief awarded under the interpreted law.

## 3. STATUTORY CONSTRUCTION MASTER QUICK-REFERENCE MATRIX

| Sequence      | Stage / Operation              | Key Question & Analytical Action                                                                          |
|---------------|--------------------------------|-----------------------------------------------------------------------------------------------------------|
| <b>Step 0</b> | <b>Verba Legis Assessment</b>  | Is the text clear? If YES, simply APPLY. If NO, proceed to construction.                                  |
| <b>Step 1</b> | <b>Intrinsic Analysis</b>      | Read whole statute, title, whereas clauses, definitions, context, and structure.                          |
| <b>Step 2</b> | <b>Canons &amp; Maxims</b>     | Apply <i>Noscitur a sociis</i> , <i>Ejusdem generis</i> , <i>Expressio unius, Generalia specialibus</i> . |
| <b>Step 3</b> | <b>Extrinsic Investigation</b> | Review explanatory notes, committee reports, bicameral debates, and precedents.                           |

|               |                                      |                                                                                    |
|---------------|--------------------------------------|------------------------------------------------------------------------------------|
| <b>Step 4</b> | <b>Strict / Liberal Review</b>       | Determine policy type: Strict for Penal/Tax; Liberal for Labor/Remedial/Elections. |
| <b>Step 5</b> | <b>Harmonization &amp; Synthesis</b> | Presume constitutionality, reconcile in pari materia, and draft final holding.     |